

24STCV12819 24STCV12819

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-09-10

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Case Number: 24STCV12819 Hearing Date: September 10, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: September 10, 2026

CASE

NUMBER: 24STCV12819

CASE NAME: Corella v. Collins

MOVING PARTY: Defendant Harold Jeff Collins

OPPOSING

PARTY: Plaintiff John Corella

PROCEEDING: MOTION FOR JUDGMENT ON
THE PLEADINGS

RULING SUMMARY: Defendant's motion is denied. Plaintiff to give notice.

Background

This action arises from allegations of breach of fiduciary duty in connection with a joint venture to create and develop the television series, "Dance Moms." On May 21, 2024, plaintiff John Corella ("Plaintiff") filed a complaint against defendant Harold Jeff Collins (erroneously sued as Jeffrey Collins) ("Defendant") and Does 1 to 10, alleging causes of action for (1) breach of fiduciary duty; (2) fraud; (3) conversion; and (4) money had and received.

On October 3, 2024, Plaintiff filed the First Amended Complaint ("FAC") alleging a single cause of action for breach of fiduciary duty. On January 21, 2025, the Court sustained the demurrer to the FAC with leave to amend.

On February 3, 2025, Plaintiff filed a Second Amended Complaint ("SAC") again alleging a cause of action for breach of fiduciary duty. On April 3, 2025, the court granted Defendant's motion to strike portions of the SAC with leave to amend.

On April 18, 2025, Plaintiff filed a Third Amended Complaint ("TAC") alleging the cause of action for breach of fiduciary duty.

On April 27, 2026, Defendant filed the operative motion for judgment on the pleadings. Plaintiff has opposed.

Request
for Judicial notice

Defendant asks the Court to take judicial notice of Plaintiff's opposition to Defendant's demurrer to the FAC filed in this action on January 7, 2025. Defendant has not attached the document as an exhibit to the request. The request is granted as to the existence of the opposition and the date of its filing, and not as to the truth of the matters alleged in it. (Evid. Code, § 452, subd. (d).)

motion for
judgment on the pleadings[1]

I. Legal Standard

"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057, 1064.) "In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged." (Fire Ins. Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452.) When considering demurrers and judgment on the

pleadings, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) A motion for judgment on the pleadings does not lie as to a portion of a cause of action. (Id.) “In the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action.” (Gami v. Mullikin Medical Ctr. (1993) 18 Cal.App.4th 870, 876.) A non-statutory motion for judgment on the pleadings may be made any time before or during trial. (Stoops v. Abbassi (2002) 100 Cal.App.4th 644, 650.)

II. Discussion

Defendant moves for a judgment on the pleadings based on the statute of frauds. (Civ. Code, § 1624.) Defendant argues that Plaintiff’s claim is barred because the alleged joint venture agreement continues “in perpetuity” and thus could not have been performed within one year. (Mot., at p.3; TAC ¶¶ 28, 35, 133, 136.) In addition, there is no written agreement subscribed by Defendant. (Mot., at p. 3.) Defendant relies on Clarke v. Yu (2026) 119 Cal.App.5th 199, 206-208, where the Court of Appeal held that “a claim for breach of fiduciary duty arising out of an oral or implied joint venture agreement that by its terms cannot be performed within a year is barred by the statute of frauds and must be dismissed.”

Relying on White Lighting Co. v. Wolfson (1968) 68 Cal.2d 336, 343-345, and Foley v. Interactive Data Corp. (1988) 47 Cal.3d 654, 672-675, Plaintiff argues in opposition that Civil Code section 1624, subdivision (a)(1) does not apply here because the alleged acts of creating, developing, and exploiting the television series were capable of being performed within one year. (Opp., at pp. 6-8.) Plaintiff argues that the holding in Clarke, the case cited by Defendant, is narrow in scope, applying only “where the agreed objective itself necessarily requires more than one year to accomplish,” and that, because Clarke was resolved on summary judgment, it is inapposite. (Opp., at p.7.) Lastly, Plaintiff contends that his full performance independently defeats Defendant’s statute of frauds defense. (Opp., at pp. 11-12.)

In Clarke, the Court of Appeal held that “oral and implied joint ventures are subject to the statute of frauds if the agreement,

by its terms, cannot be performed within a year from its making.” (Clarke, supra, 119 Cal.App.5th at p.207.) Affirming the trial court’s order granting summary judgment to defendants, the appellate court concluded that the joint venture agreement at issue in that case was barred by the statute of frauds because the Court “found no genuine disputed issue of material fact exists as to whether this alleged joint venture agreement could, by its terms, be performed within one year because it would take longer than a year to develop the C-H activation technology underlying CHange.” (Ibid.) The submitted evidence showed that the technology could not be developed within one year. (Id., at p. 208.)

The question, here, turns on whether the joint venture’s terms contemplated performance within one year. The answer to this inquiry is a question of fact that cannot be discerned from the face of the TAC. Plaintiff acknowledges his “consistent position that the Attachment Agreement did not create or fully define the Joint Venture.” (Opp., at p. 10.) Thus, the inquiry turns to the oral agreement that preceded the Attachment Agreement.

Plaintiff’s allegations as to the oral joint venture agreement are minimal. As alleged in the TAC, the joint venture was created on August 10, 2010 “for the development of entertainment product about competitive dance kids and their families. The joint venture created and developed the series and Franchise entitled ‘Dance Moms.’” (TAC ¶ 12, 136.) Plaintiff argues in opposition to the MJOP that “none of the acts constituting the alleged purpose of the Joint Venture necessarily required performance extending beyond one year” (Opp., at p. 7.) From the face of the TAC, it is unclear whether the acts to accomplish the purpose of the Joint Venture could be performed within one year. Plaintiff alleges that Defendant “was the only one of the three joint venturers who had any relevant experience in television entertainment production specifically in reality television.” (TAC ¶ 10.) Plaintiff acknowledges “that the oral Joint Venture contains no express duration exceeding one year,” but the TAC also fails to allege any facts supporting the contention that the agreement could be performed within one year. (Opp., at p. 10.) Plaintiff fails to allege the agreement’s terms or to offer insight into the contemplated duration of contractual performance.

As the moving party, Defendant has the burden to establish the bar on the face of the pleadings, and any uncertainty weighs in favor of Plaintiff. Defendant’s references to Plaintiff’s opposition to a previous demurrer are not persuasive because Plaintiff states that the Attachment Agreement, not the Joint Venture, defines the rights

“in perpetuity.” (Opp. to Demurrer, at p. 4:20-21.) Defendant fails to sustain his burden to establish that the statute of frauds bars Plaintiff’s claims as a matter of law.

Plaintiff argues in the alternative that even if the Court were to conclude that the statute of frauds applies, his full performance independently overcomes the defense. (Opp., at pp. 11-12.)

The Court finds that Plaintiff sufficiently alleges in the TAC that he fully performed his obligations pursuant to the agreement. In *Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 454, the Court of Appeal found that Plaintiff’s allegations that he fully performed all of his obligations under the contract successfully took the contract out of the statute of frauds at the demurrer stage.

Plaintiff, here, alleges that he is a professional dancer who “had the access to the kids and families who would be the stars of the show” and “also acted as the de facto talent scout for the families and dancers, assessing their talent, personalities, and potential for the project. He was the Dance Guy of what would become Dance Moms.” (TAC ¶ 9.) The series “began production in or about April of 2011 and began airing soon thereafter on the ‘Lifetime network.’” (TAC ¶ 40.) Under the joint venture, Defendant was “to pay the individual members” through his control of Collins Ave. (TAC ¶ 26.) Between 2013-2019, while the series originally aired, payments were made by Defendant through his entities. (TAC ¶ 64.) In January 2020, Collins Ave shut down and sold “Dance Moms” to Asylum Entertainment Group. (TAC ¶ 81.) Per the TAC, Defendant was solely responsible for accounting and payment. (TAC ¶¶ 68-69 [“Defendant told Plaintiff he had no right to such records or accountings as it was the agreement between the parties that Defendant Collins would be the sole person to access those records and documents. Plaintiff made no such agreement with his partners in the Joint Venture and did not waive his right to accountings of transactions or financial matters relating to the Joint Venture.”].) Plaintiff’s allegations that he fully performed his obligations pursuant to the agreement precludes a finding that the statute of frauds bars his claims at the pleading stage.

Conclusion

Defendant’s motion for judgment on the pleadings is denied.

Date: September
10, 2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court

[1]

Code of Civil Procedure section

439 requires the moving party to meet and confer in person or by telephone with the party who filed the pleading before filing a motion for judgment on the pleadings. The meet and confer requirement has been met. (Smith Decl., ¶ 2.)